



May 6, 2025

Michael Theis
Account Manager, Executive Liability Practice
VANTAGE MOTORWORKS
PO BOX 4049 (CONCORD, 94524)
1608 HARBOR DRIVE STE 1300
LIBERTY, CA 12754-5417

Re: STONEPATH FABRICATION
Investment Management Solutions
Policy Number 085121419
Expiration Date: 05/01/2026

Dear Michael:

We are pleased to enclose Policy Number 085121419 for STONEPATH FABRICATION. We trust that this policy meets with the specifications outlined in our quotation (number 6345586901). Please review it carefully to confirm this. Should you detect any problem, please contact me as soon as possible.

If commissions or other compensation are payable hereunder, Insurance Producer will comply with all applicable federal and state laws, rules, regulations and/or orders governing disclosure by an agent, broker or producer to an insured or prospective insured TALLGRASS HOLDINGS

We appreciate the opportunity to do business with STONEPATH FABRICATION and with you. If you should have any comments, questions, or concerns, please do not hesitate to contact me.

Sincerely,

Michael Sarkisaw

Michael Sarkisaw
Underwriting Specialist
teresa.jessup@example.com



POLICY HOLDER NOTICE – CALIFORNIA

IMPORTANT NOTICE ABOUT THE POLICY OF INSURANCE FOR WHICH YOU HAVE APPLIED OR THE CLAIM YOU HAVE SUBMITTED.

READ THE FOLLOWING INFORMATION CAREFULLY.

Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

**INVESTMENT MANAGEMENT LIABILITY SOLUTIONS
DECLARATIONS****NOTICE:**

THIS POLICY APPLIES ONLY TO ANY CLAIM FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD. CLAIMS MUST BE REPORTED TO THE INSURER IN ACCORDANCE WITH THE POLICY. THE LIMIT OF LIABILITY AVAILABLE TO PAY SETTLEMENTS OR JUDGMENTS WILL BE REDUCED BY DEFENSE COSTS. DEFENSE COSTS WILL BE APPLIED TO THE RETENTION. THE INSURER SHALL NOT BE LIABLE FOR DEFENSE COSTS OR ANY OTHER AMOUNT UPON EXHAUSTION OF THE APPLICABLE LIMIT OF LIABILITY.

PLEASE REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

Terms in bold face type have the special meaning. See the DEFINITIONS section of this Policy.

NAMED INSURED HELEN STANHOPE		PRODUCER
Item 1.	STONEPATH FABRICATION 6057 Maple Road Suite 700 Canton, CA 13617	VANTAGE MOTORWORKS Michael Theis PO BOX 4049 (CONCORD, 94524) 1608 HARBOR DRIVE STE 1300 LIBERTY, CA 12754-5417
Attn:		
CUSTOMER NUMBER		INSURER
885872		Ridgeway Enterprises
POLICY NUMBER		151 North Franklin Street
085121419		Monroe, IL 10950
		A stock insurance corporation hereinafter the "Insurer"

Item 2. **Policy Period:** 05/01/2025 to 05/01/2026
12:01 a.m. local time at the address stated in Item 1.

Item 3. Policy Premium: \$20,000

Surcharges/Taxes:
N/A

Amount:
N/A

Item 4. Notices to Insurer

Claims:
CNA – Claims Reporting
P.O. Box 1980
Warwick, IL 10990-6290
Email: roger.whitfield@example.com
Fax Number: 866-773-7504

All other notices:
CNA Global Specialty Lines

Item 5. **Extended Reporting Period**
a. Period: 365 days
b. Premium: 150% of Policy Premium



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS DECLARATIONS

Item 6. Limit of Liability (Inclusive of **Defense Costs**)

- a. Policy Aggregate Limit of Liability:
\$2,000,000 for all **Loss** from all **Claims** for which this Policy provides coverage
- b. Aggregate Coverage Part Limit of Liability - any Coverage Part for which a limit of liability is shown below is "Included":

\$2,000,000 for Investment Adviser Professional Liability Coverage Part

\$2,000,000 for Investment Adviser Management Liability Coverage Part

\$2,000,000 for Fund Management and Professional Liability Coverage Part
- c. **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability (exclusive of **Defense Costs** and subject to the Aggregate Limit of Liability): \$250,000

Item 7. Retentions

Retention applicable to:

Investment Adviser Professional Liability Coverage Part: \$100,000

Investment Adviser Management Liability Coverage Part: \$100,000

Fund Management and Professional Liability Coverage Part: \$100,000

Item 8. Prior or Pending Date: 04/01/2022

Item 9. Endorsements forming a part of this Policy at issuance:

CNA-57759-DD	Cost Of Corrections Endorsement
CNA-40104-KV	Mock Regulatory Compliance Examination Contribution Endorsement (Approved Compliance Consulting Firms)
CNA-25450-TR	Vantage Works Endorsement
CNA-37347-US	Pre-Claim Expenses Endorsement
CNA-83995-QW	Schedule Of Private Funds Endorsement
CNA-95078-MF	Cap On Losses From Certified Acts Of Terrorism Endorsement
CNA-80630-UT	Notice Offer Of Terrorism Coverage Disclosure Of Premium Confirmation Of Acceptance
CNA-20460-ES	Service of Suit
CNA-25922-AK	Conditional Renewal Endorsement-California
CNA-62601-QW	Amend Extended Reporting Period Item 5 Of The Declarations
CNA-79549-GJ	Vital Executive Expenses Endorsement
CNA-33155-MJ	Amend Representations And Severability Of The Application Endorsement (Add Material and Inconsistency Language)



**INVESTMENT MANAGEMENT LIABILITY SOLUTIONS
DECLARATIONS**

These Declarations, along with the completed and signed **Application**, the Policy, and any written endorsements attached shall constitute the contract between the **Insureds** and the Insurer.

Authorized Representative:

A handwritten signature in blue ink, appearing to read "D. W.", is written over a faint, light blue grid background.

Date: 05/06/2025



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

GENERAL TERMS AND CONDITIONS

In consideration of the premium, and in reliance upon the **Application**, the Insurer and **Insureds** agree as follows:

I. COVERAGE PARTS

A Coverage Part is included within this Policy and affords coverage only if the Coverage Part is purchased as indicated by a corresponding Limit of Liability for that Coverage Part in Item 6.b. of the Declarations.

The terms and conditions in each Coverage Part apply only to such Coverage Part and shall not apply to any other Coverage Part.

If any provision in these General Terms and Conditions is inconsistent with the terms and conditions of any applicable Coverage Part, the terms and conditions of such Coverage Part shall control.

II. DEFINITIONS

Any defined word not found in the General Terms and Conditions shall have the meaning assigned to it in the applicable Coverage Part.

Additional Insured means any natural person who is:

1. a past, present or future advisory board or committee member, acting in his/her capacity on behalf of an **Insured** ^{Vantage}
2. an independent contractor, provided that such person is acting on behalf and at the specific direction of an **Insured Entity**, and only to the extent that such person is indemnified by an **Insured** ^{Vantage} or
3. added by endorsement.

Application means any signed application, whether the Insurer's or otherwise, including attachments to such applications, any public documents filed by an **Insured Entity** with the Securities and Exchange Commission ("SEC") within twelve (12) months prior to the inception of this Policy, and any other materials or representations provided to the Insurer by or on behalf of the **Insured** in connection with the underwriting or negotiation of the terms and conditions of this Policy.

Claim means:

1. a written demand (excluding a subpoena) for monetary, non-monetary, injunctive, or declaratory relief;
2. a written request for arbitration, mediation, or other alternative dispute resolution;
3. a written request to toll or waive a statute of limitations;
4. a civil, criminal, administrative, or regulatory proceeding commenced by the earlier of: (a) the return of service of a complaint or indictment upon an **Insured**; (b) the filing of an indictment or information with respect to an **Insured**, or (c) the arrest or detention of an **Insured Person**;
5. an **Extradition**; or
6. ^{IRONVALE WORKS}

against an **Insured** for a **Wrongful Act**, including any appeal therefrom. **Claim** shall also include an **Informal Investigation**. **Claim** shall not include a **Shareholder Derivative Demand**.

Unless specifically articulated otherwise herein, a **Claim** shall be deemed first made on the earliest of the date on which the **Claim** is first made against, served upon, or first received by any **Insured**, or the applicable notice or order is filed or entered.

Clean-Up Costs mean any fees, costs, or expenses, including legal and professional fees, incurred in testing for, monitoring, cleaning up, removing, containing, treating, neutralizing, detoxifying, or assessing the effects of **Pollutants**.



Defense Costs mean reasonable and necessary fees, costs, and expenses, incurred by an **Insured** in the investigation, defense, or appeal of any covered **Claim**, including the premium for appeal, attachment, or similar bonds arising out of a covered judgment. **Defense Costs** shall not include: **Shareholder Derivative Demand Investigation Costs, Non-Party Witness Fees** or salaries, wages, fees, overhead, or benefit expenses of any **Insured** Vantage

Domestic Partner means any person qualifying as such under any federal, state, or local law or under an **Insured Entity's** employee benefit plans.

Employee means any past, present, or future full-time, part-time, seasonal, or temporary employee, or any volunteer of an **Insured** STONEPATH INDUSTRIES

ERISA, COBRA or any Similar Act means the Employee Retirement Income Security Act of 1974, (including the Consolidated Omnibus Budget Reconciliation Act of 1985)(COBRA), as amended or any other similar federal, state, or local statutory or regulatory law in the United States.

Executive means any:

1. natural person who is a past, present, or future duly elected or appointed director, officer, trustee, governor of a corporation, management committee member of a joint venture, member of the board of managers of a limited liability company (or holder of a functionally equivalent position in a foreign jurisdiction), general partner or managing partner, of an **Insured Entity**;
2. natural person who is a past, present, or future In-House General Counsel or Risk Manager of the **Named Insured** BLUE
3. holder of such functionally equivalent position to those included in paragraph 1. above in an **Outside Entity** while serving at the specific request or direction of the **Named Insured**.

Executive shall not include an **Employee**.

Extended Reporting Period means the additional period of time purchased by an **Insured** after termination or cancellation (except for non-payment of premium) of this Policy within which to report a **Claim** subject to the provisions of Section VIII, Extended Reporting Period.

Extradition means a formal process by which an **Executive** located in any country is surrendered, or requested to surrender, to another country to respond to a criminal accusation, commenced by an arrest, detainment, or incarceration of an **Executive** by any foreign jurisdiction law enforcement authority outside of the United States.

Extradition Costs means reasonable and necessary fees, costs, and expenses incurred by an **Executive** in lawfully opposing or defending an **Extradition**. **Extradition Costs** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured** Vantage

Facilitation Costs means reasonable and necessary fees, costs, and expenses (including loan interest) incurred by an **Executive** in connection with a covered **Claim**, solely to facilitate the return of amounts required to be repaid by such **Executive** pursuant to a court ordered, statutory mandated, or settlement negotiated reimbursement of any amount to which such **Executive** was not legally entitled. **Facilitation Costs** shall not include the actual amounts required or sought to be repaid, reimbursed, disgorged, or otherwise surrendered by such **Executive**.

Financial Insolvency means:

1. the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official, or creditors' committee to take control of, supervise, manage, or liquidate an **Insured Entity** or **Outside Entity** BLUE
2. the **Named Insured** becoming a debtor in possession under United States bankruptcy law.

Formal Investigation means any formal investigation of an **Insured** by a **Regulatory Body** alleging violations of securities laws or **ERISA, COBRA or any Similar Act** by such **Insured**, evidenced by a subpoena, grand jury subpoena, formal order or formal notice of investigation, search warrant, civil investigative demand, Wells Notice or target letter (within the meaning of Title 9, §11.151 of the United States Attorney's Manual), or SEC form 1661 or 1662, from a **Regulatory Body** identifying the nature of the investigation and specific allegations of **Wrongful Acts** against the **Insured**.

FAIRMOUNT HOLDINGS



Inadequate Consideration Claim means a **Claim** alleging that the price or consideration paid or proposed to be paid for the acquisition or completion of the acquisition of all or substantially all the ownership interest in or assets of an entity or an **Insured Entity** is inadequate.

Informal Investigation means:

1. any informal administrative or regulatory investigation of an **Insured Person** by a **Regulatory Body**, commenced by the **Insured Person's** receipt of:
 - (a) a written notice to produce documents that are solely in the possession and control of such **Insured Person** and relate to the **Insured Entity's** business activities; or
 - (b) a request for testimony or a request for an interview issued by a **Regulatory Body** directed to such **Insured** FAIRMOUNT MOTORWORKS
2. an **Internal Investigation**.

Informal Investigation shall not include any routine examinations, routine inspections, "sweep" examinations, general requests for information, or any other similar reviews, inquiries, or investigations.

TALLGRASS ENTERPRISES

Insured Person means an **Executive**, **Employee**, or **Additional Insured**.

Internal Investigation means any investigation commenced by or on behalf of the board of directors (or functionally equivalent management body) of an **Insured Entity**, against an **Executive**, in his/her capacity as such, to determine whether to bring a **Shareholder Derivative Suit** against such **Executive**. An **Internal Investigation** will be deemed commenced upon the **Executive's** receipt of a written communication indicating the initiation of the investigation.

Interrelated Wrongful Acts mean any **Wrongful Acts** that are causally connected by reason of any common fact, circumstance, situation, transaction, or event or series of common facts, circumstances, situations, transactions, or events.

Investment Banking Services means any advice or service relating to any aspect of corporate mergers, acquisitions, securities offerings, restructuring, divestitures, or investment banking.

Management Control means:

1. owning or controlling interests of an entity representing more than fifty percent (50%) of the right to control or manage such entity as evidenced by the present power to elect, designate or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of such entity, or
2. with respect to an entity having the present right, pursuant to written contract or an **Organizational Document**, to elect, designate or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of such entity.

Named Insured means the entity named in Item 1. of the Declarations, including such entity as a debtor in STONEPATH BUILDERS

Non-Indemnifiable Loss means any **Loss** incurred by an **Insured Person** that an **Insured Entity** fails or refuses to pay, advance, or indemnify:

1. due to **Financial Insolvency**; or
2. because such indemnification is not permitted pursuant to law.

Non-Party Witness Fees means reasonable and necessary fees, costs, and expenses incurred by a non-party **Insured Person** when providing witness testimony in a covered **Claim**. **Non-Party Witness Fees** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person**.

Organizational Document means the articles of incorporation or association, certificate of incorporation, charter, by-laws, offering memorandum, limited liability company agreement, partnership agreement, operating agreement, subscription agreement, advisory or management agreement, separate indemnification agreement, and all other similar documents, instruments or certificates executed, adopted, or filed in connection with the creation, formation, organization, or governance of an **Insured Entity**, including any amendments thereto.



Outside Entity means any charitable not-for-profit entity exempt from federal income taxation, or any entity specifically included as an **Outside Entity** by endorsement to this Policy, provided that such entity is not an **Insured Entity**.

Policy Period means the period from the effective date of this Policy to the Policy expiration date stated in Item 2. of the Declarations, or its earlier termination or cancellation date. **Policy Period** shall also include the **Extended Reporting Period**, if purchased.

Pollutants mean any substance exhibiting hazardous characteristics as defined on any list of hazardous substances issued by the Northvale Works or any state, local, or foreign counterpart. **Pollutants** also mean, without limitation, any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, or waste (including materials to be recycled, reconditioned or reclaimed), as well as any air emission, odor, waste water, oil or oil products, infectious or medical waste, asbestos, or asbestos products, or any noise.

Winslow Builders means any entity in which a **Fund** owns or controls (or previously owned or controlled) outstanding debt or equity securities of such entity.

Private Fund means any:

1. Cedarline Service
 - (a) created or sponsored by an **Insured Entity** as of the effective date of this Policy which is listed on the Schedule of Private Funds attached to this Policy; or
 - (b) that has been terminated, merged, sold, or dissolved, including any series or portfolios of such Cedarline Service, but only for **Wrongful Acts** that occurred while such **Private Fund** was owned or managed by the **Insured Entity**;
2. affiliated parallel funds, master funds, feeder funds, blocker funds, special purpose entities, limited purpose entities, investment holding companies, or other entities created for the purpose of holding investments in the name or right of an Cedarline Service that is described in 1(a) or 1(b) above; or
3. entity general partner or entity managing general partner of a partnership, or entity managing member of a limited liability company, of an Cedarline Service that is described in 1(a) or 1(b) above.

Professional Services Client means a customer or client that has received, or has been rendered **Professional Services** by an **Insured**.

Registered Fund means any:

1. Cedarline Service registered under the Cedarline Service Act of 1940:
 - (a) as of the effective date of this Policy which is listed on the Schedule of Registered Funds attached to this Policy; or
 - (b) that has been terminated, merged, sold, or dissolved, including any series of portfolios of such Cedarline Service, but only for **Wrongful Acts** that occurred while such **Registered Fund** was sponsored or managed by the **Insured Entity**; or
2. series of portfolios of any Cedarline Service described in 1(a) above.

Regulatory Body means the SEC, Department of Justice, Attorney General, Commodities Futures Trading Commission, or a similar federal, state, local, or foreign government authority or any self-regulatory organization of which the **Insured** STONEPATH

Responsible Person means any past, present, or future Chairman, President, Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, In-House General Counsel, or Chief Compliance Officer while holding such position or any holder of any functionally equivalent position in the **Named Insured**.

Securities Claim means that portion of a **Claim**:

1. brought by:
 - (a) any person or entity alleging, arising out of, based upon or attributable to the purchase or sale or offer or solicitation of an offer to purchase or sell any securities of an **Insured Entity**; or
 - (b) a security holder of an **Insured Entity** with respect to such security holder's interest in securities of such **Insured** MERIDIAN
2. brought as a **Shareholder Derivative Suit**.



Shareholder Derivative Demand means any written demand letter by one or more shareholders of an **Insured Entity** upon the board of directors (or functionally equivalent management body) of such **Insured Entity** to commence an **Internal Investigation** or to bring a **Shareholder Derivative Suit**.

Shareholder Derivative Demand Investigation Costs mean reasonable and necessary fees, costs, and expenses incurred by an **Insured Entity** (including its board of directors or any committee of its board of directors) in connection with the investigation of or responding to a **Shareholder Derivative Demand**. **Shareholder Derivative Demand Investigation Costs** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person** or any costs, fees, or expenses incurred in a **Securities Claim**.

Shareholder Derivative Suit means a lawsuit brought derivatively on behalf of an **Insured Entity** by a shareholder of such **Insured Entity** against:

1. an **Executive** of such **Insured Entity**; or
2. the **Insured** NORTHVALE BUILDERS

Subsidiary means an entity in which the **Named Insured** has **Management Control** directly or indirectly through one or more other **Subsidiaries**:

1. on or before the effective date of this Policy; or
2. after the effective date of this Policy by reason or being created or acquired by an **Insured Entity** after such date, subject to paragraph 1.(a) in Section XI, Change of Control or Status of Insureds. **Subsidiary** does not include any **Fund** or Cedarline Holdings

Takeover means:

1. the acquisition by another entity or person, or group of entities or persons acting in concert, of the:
 - (a) ownership or control of voting stock of the **Named Insured** resulting in such entity, person, or group owning or controlling more than fifty percent (50%) of the voting stock of the **Named Insured**;
 - (b) ownership or control of the **Named Insured** as evidenced by the present power to elect, designate, or appoint the majority of the board of directors, management committee members, management board members, general partners, or managing partners of the **Named Insured**; or
 - (c) assets of the **Named Insured** resulting in such entity, person, or group owning more than fifty percent (50%) of the total consolidated assets of the **Named Insured** as of the date of the **Named Insured's** most recent audited consolidated financial statement prior to such acquisition;
2. the merger of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or
3. the consolidation of the **Named Insured** with another entity.

Whistleblower Activity means the lawful activities of an **Insured Person** who causes information to be provided to, or otherwise assists in an investigation of, with respect to any alleged wrongdoing by an **Insured**, the attention of a government or law enforcement agency provided such activities are protected by statute with rights and remedies for retaliation recognized under federal, state, or local statutory or regulatory law.

III. GENERAL POLICY EXCLUSIONS

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

1. Contractual Liability

for:

- (a) an **Insured's** alleged liability under any contract or agreement, including express warranties or TALLGRASS
- (b) the liability of others an **Insured** assumes under any contract or agreement,

provided that this exclusion shall not apply to:

- i. an **Insured's** liability that exists in the absence of such contract or agreement;
- ii. any **Claim** against an **Insured** by a **Professional Services Client** with respect to the rendering of, or failure to render, **Professional Services**;
- iii. **Non-Indemnifiable Loss**; or



- iv. any **Claim** based upon, arising out of, or relating to any actual or alleged breach of any **Organizational Document**.

2. **Employment Related**

based upon, or arising out of, any employment related matter involving any **Insured Person** or any applicant CLEARWATER CONTRACTING

3. **ERISA/COBRA**

for any actual or alleged violation of the responsibilities, obligations, or duties imposed upon fiduciaries by **ERISA, COBRA or any Similar Act** in connection with an **Insured Entity's** pension, employee benefit, or welfare plans.

4. **Illegal Profits/Deliberate Acts**

based upon or arising out of:

- (a) an **Insured** gaining any profit, remuneration, or financial advantage to which such **Insured** was not legally entitled; provided that this exclusion shall not apply to **Loss** in a **Securities Claim** attributable to actual or alleged violations of Section 11, 12, or 15 of the Securities Act of 1933, as amended; or
- (b) the committing of any deliberate criminal, or fraudulent act or omission, or any willful violation of law or regulation by an **Insured**,

established by a final non-appealable adjudication in any underlying action or proceeding other than a coverage action to determine the rights and responsibilities of any party to this Policy.

For purposes of determining the applicability of this exclusion:

- i. the conduct of an **Insured Person** shall not be imputed to any other **Insured Person**; and
- ii. only the conduct of a **Responsible Person** shall be imputed to the **Named Insured**.

5. **Insured** STONEPATH SERVICE

- (a) brought or maintained by, or on behalf of, an Insured Entity against another Insured Entity, or
- (b) brought or maintained by, or on behalf of, any:
 - i. Insured IRONVALE WORKS
 - ii. **Outside Entity** against an **Insured Person** serving in his/her capacity for such **Outside Entity**;

provided that this exclusion 5(b) shall not apply to any:

- a. **Defense Costs** which constitute **Non-Indemnifiable Loss**;
- b. **Shareholder Derivative Suit**;
- c. **Claim** brought, or maintained, at the recommendation of independent counsel, (such counsel approved by the Insurer), and the failure to make such **Claim** would result in liability of the **Independent Directors**;
- d. **Claim** against an **Insured Person** no longer serving in his/her insured capacity;
- e. **Claim** brought or maintained by, or on behalf of, an **Insured Entity** or **Outside Entity** while in **Financial Insolvency**; or
- f. **Claim** brought and maintained outside the United States or any common law jurisdiction.

6. **Prior Notice**

based upon or arising out of any **Wrongful Act** or any matter, fact, circumstance, situation, transaction, or event that has been the subject of any notice accepted under any policy of which this Policy is a direct or indirect renewal or replacement.



7. **Prior or Pending**

based upon or arising out of, or attributable to the same facts, circumstances, situations, transactions, or events, or the same series of facts, circumstances, situations, transactions, or events underlying or alleged in, any written demand, request, action, proceeding, claim, or **Claim** commenced against any **Insured** on or prior to the Prior or Pending Date set forth in Item 8. of the Declarations.

IV. **LIMIT OF LIABILITY/RETENTION/INDEMNIFICATION/ADVANCEMENT OF DEFENSE COSTS**

1. **Limits of Liability**

(a) **Policy Aggregate Limit of Liability**

The amount set forth Item 6.a. of the Declarations as the Policy Aggregate Limit of Liability is the maximum aggregate limit of the Insurer's liability for all **Loss** under all Coverage Parts of the Policy arising from **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

Each Coverage Part Aggregate Limit of Liability shall be part of, and not in addition to, the amount stated in Item 6.a. of the Declarations as the Policy Aggregate Limit of Liability for all **Loss** arising from all **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

(b) **Coverage Part Aggregate Limit of Liability**

The amount stated in Item 6.b. of the Declarations as the Coverage Part Aggregate Limit of Liability with respect to each Coverage Part shall be the aggregate limit of liability of the Insurer under such Coverage Part for all **Loss** arising from all **Claims** or **Shareholder Derivative Demands** first made against the **Insureds** during the **Policy Period**.

In the event more than one Coverage Part applies to a **Claim**, the higher Limit of Liability available for such **Claim** shall apply. In the event more than one Insuring Agreement in a Coverage Part applies to a **Claim**, the higher Limit of Liability available for such **Claim** shall apply.

(c) **Shareholder Derivative Demand Investigation Costs Sublimit of Liability**

The **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability set forth in Item 6.c. of the Declarations is the aggregate limit of the Insurer's liability for all **Shareholder Derivative Demand Investigation Costs** arising from all **Shareholder Derivative Demands**, regardless of the number of **Shareholder Derivative Demands**, or Coverage Parts affording such coverage. The **Shareholder Derivative Demand Investigation Costs** Sublimit of Liability shall be part of and not in addition to the Policy Aggregate Limit of Liability set forth in Item 6.a. of the Declarations.

2. **Retention**

(a) The Insurer shall only be liable for **Loss** that is in excess of the applicable Retention stated in Item 7. of the Declarations for the applicable Coverage Part. Any applicable Retention shall be uninsured and borne by the **Insured**.

(b) A single Retention shall apply to **Loss** arising from all **Claims** alleging the same **Wrongful Act** or **Interrelated Wrongful Acts**. In the event that more than one Retention applies to **Loss** arising from a **Claim**, the higher Retention shall apply.

(c) If the **Insured Entity** is indemnifying an **Insured Person** for **Non-Party Witness Fees**, the
CEDARLINE FABRICATION

(d) No Retention applies with respect to:



- i. **Non-Indemnifiable Loss;** or
- ii. **a Shareholder Derivative Demand.**

3. **Presumptive Indemnification and Advancement of Defense Costs**

It is agreed that each **Insured Entity** shall fulfill its indemnification obligations to each **Insured Person** to the fullest extent permitted by law.

The Insurer shall advance **Defense Costs** on a current basis, but no later than ninety (90) days after receipt and review of the legal bills and any supporting documentation reasonably requested by the Insurer. In the event that an **Insured Person** makes a written request for indemnification from an **Insured Entity** and the **Insured Entity** fails to respond, or refuses to indemnify an **Insured Person** within sixty (60) days of such request, then the Insurer, shall advance **Defense Costs**. Such advancement will continue until such time that the **Insured Entity** accepts the **Insured Person's** request for indemnification or the applicable Limit of Liability set forth in the Declarations has been exhausted, whichever occurs first.

The Insurer reserves all rights to recoupment with respect to any advancement of **Defense Costs**. Any such advancement of **Defense Costs** shall be repaid to the Insurer by the **Insureds**, severally according to their respective interests, if and to the extent it is determined that such **Defense Costs** are not insured under this Policy. The Insurer shall not seek repayment from an **Insured** of advanced **Defense Costs** that are uninsured pursuant to Exclusion 4, Conduct, in Section III, Exclusions, unless established by a final, non-appealable adjudication as specified therein.

Any advancement of **Defense Costs** by the Insurer shall reduce the respective Limit of Liability set forth in the Declarations. If the Insurer recovers any such **Defense Costs** paid, the amount of such **Defense Costs**, less all costs incurred by the Insurer to obtain such recovery, shall be applied to the applicable Coverage Part Limit of Liability.

V. Tallgrass **/ CONSENT/DUTY TO DEFEND/ ALLOCATION**

1. Tallgrass

Each **Insured** shall, as a condition precedent to obtaining coverage under the Policy, give the Insurer full Tallgrass, assistance, and information as the Insurer may reasonably request. The **Insureds** shall do nothing that in any way increases the Insurer's liabilities or prejudices the Insurer's potential or actual rights of recovery. The failure of any **Insured Person** to give the Insurer Tallgrass, assistance, and information as required hereunder shall not impair the rights of any other **Insured Person** under this Policy.

2. **Insurer's Consent**

Subject to the next paragraph, the **Insureds** shall not agree to any settlement, make any offer of settlement, stipulate to any judgment, incur any **Defense Costs, Loss, Shareholder Derivative Investigative Costs, Extradition Costs, Facilitation Costs, Non-Party Witness Fees**, or any similar cost or expense, or admit any liability or assume any contractual obligation, without the Insurer's prior written consent, such consent not to be unreasonably withheld.

Notwithstanding the above, if the **Insureds** are able to settle all **Claims**, including all **Interrelated Wrongful Acts**, for an aggregate amount, including **Defense Costs**, not exceeding the applicable Retention, the Insurer's consent shall not be required for the settlement of such **Claims**.

3. **Duty to Defend**

The **Insureds** shall have the duty to defend under this Policy. The Insurer shall be entitled to effectively associate in the defense and the negotiation of any settlement of any **Claim**, payment of any **Loss**, costs, or expenses that appears reasonably likely to exceed the applicable Retention.

4. **Allocation**

The Insurer and the **Insureds** shall use their best efforts to determine a fair and proper allocation between **Loss** and any amount that is not covered **Loss** or any other amount, based on the relative legal and financial exposures of the covered parties to the covered matters. Failure of the Insurer and the **Insured** to agree to an allocation determination shall not preclude the Insurer from advancing **Defense Costs** in accordance with paragraph 3 in Section IV, Limit of Liability/Retention/Indemnification/ Advancement of Defense Costs.

If the **Insureds** and the Insurer cannot, after exerting their best efforts, agree on an allocation of insured and uninsured **Defense Costs**, the Insurer then shall advance the percentage of **Defense Costs** which the Insurer states to be fair and proper until a different allocation is agreed upon or determined pursuant to the provisions of this Policy and applicable law.

Any allocation or advancement of **Defense Costs** shall not apply to or create any presumption with respect to the allocation of other **Loss**.

VI. **SUBROGATION**

To the extent it pays any **Loss**, the Insurer shall be subrogated to all the **Insureds'** rights of recovery, including any right to indemnification from any entity, insurer, or other source. The **Insureds** shall cooperate and assist in securing such rights of recovery and indemnification.

VII. **NOTICE AND INTERRELATED CLAIMS**

1. **Notice of Claim**

The **Insureds** shall, as a condition precedent to the obligations of the Insurer under this Policy, give written notice to the Insurer of each **Claim** as soon as practicable after a **Responsible Person** first becomes aware of such **Claim**, but in no event later than:

- (a) ninety (90) days after the termination or expiration of the **Policy Period** or Coverage Part, provided that the Policy has not been renewed by the Insurer or extended by purchase of an **Extended Reporting Period**; or
- (b) the expiration of the **Extended Reporting Period**.

2. **Notice of Circumstances**

Should a **Responsible Person** elect to provide notice of circumstances which may reasonably be expected to give rise to a **Claim**, such notice shall be in writing and include the basis of the potential **Claim**, the alleged or potential **Wrongful Acts**, the remedy and potential damages sought, the parties involved, and when the **Insured** first became aware of such circumstances or allegations. Any **Claim** otherwise covered pursuant to this Policy that is subsequently made and that arises out of such notice of circumstances shall be deemed to have been first made during the **Policy Period** in which such written notice was received by the Insurer.

3. **Request for Specified Cost or Fees**

In the event that the **Insured** seeks coverage for **Shareholder Derivative Demand Investigative Costs**, or **Non-Party Witness Fees**, the **Insured** must submit a written notice to the Insurer which provides:

- (a) the date the **Shareholder Derivative Demand** was first received and a copy of the demand, and if not contained within the demand: identification of the parties involved and the remedy sought; or
- (b) with respect to **Non-Party Witness Fees**, the circumstances for the **Non-Party Witness Fee** request, including when the **Insured** was first advised of the circumstances and the nature of the testimony sought.

Any **Claim** otherwise covered pursuant to this Policy that is subsequently made and that arises out of a noticed **Shareholder Derivative Demand** shall be deemed to have been first made during the **Policy Period** in which such written notice was received by the Insurer.

4. **Interrelatedness**

With respect to any **Claims** involving the same **Wrongful Act** or **Interrelated Wrongful Acts** such **Claims** shall be deemed one **Claim** which was first made on the earlier of:

- (a) the date on which the earliest such **Claim** was first made; or
- (b) the earliest date valid notice was given by an **Insured** to the Insurer under this Policy or under any prior policy of any **Wrongful Act** or any fact, circumstance, situation, event, or transaction that underlies any such **Claim**.

In no event shall an individual lawsuit or proceeding constitute more than one **Claim**.

5. **To Whom Notices are Sent**

The **Insureds** shall give written notice to the Insurer by regular mail or email sent to the addresses specified in the Declarations. With proof of mailing, the date the written notice was sent shall be deemed the effective date of notice.

VIII. EXTENDED REPORTING PERIOD

- 1. If this Policy, or one or more Coverage Part(s), is canceled, or terminates for any reason other than non-payment of premium, the **Insureds** shall have the right to purchase an **Extended Reporting Period** for the premium and time period stated in Item 5. of the Declarations. In the event one or more Coverage Part is canceled or terminated, any purchased **Extended Reporting Period** shall apply only to such canceled or terminated Coverage Part(s).
- 2. The right to an **Extended Reporting Period** shall lapse unless written notice of election to purchase such Extended Reporting Period, together with payment of the specified premium, is received by the Insurer within sixty (60) days after the effective date of cancellation or termination of the Policy, or Coverage Part. In the event the **Named Insured** elects not to purchase an **Extended Reporting Period** and an individual **Insured** or group of **Insureds** elects to purchase such **Extended Reporting Period**, such **Extended Reporting Period** shall only apply to **Claims** against such **Insured** or group of **Insureds**, subject to paragraph 3 below.
- 3. If an **Insured** elects to purchase an **Extended Reporting Period**, coverage otherwise afforded by this Policy shall apply, subject to all terms and conditions, provided that such coverage will extend only to **Claims** that are: (a) first made during the **Extended Reporting Period**; (b) reported in accordance with paragraph 1, Notice of Claim in Section VII, Notice and Interrelated Claims; and (c) for **Wrongful Acts** taking place before the effective date of such cancellation or termination.
- 4. Any **Extended Reporting Period** purchased shall become part of the **Policy Period** extending such **Policy Period** to the expiration of the time period stated in Item 5. of the Declarations.
- 5. The premium for the **Extended Reporting Period** shall be deemed fully earned at the inception of the **Extended Reporting Period**.
- 6. There is no separate or additional Limit of Liability for any **Extended Reporting Period**.

IX. TERMINATION OR CANCELLATION

The Policy shall terminate at the earliest of the following events:

- 1. expiration of the **Policy Period**;
- 2. termination by the Insurer only for nonpayment of premium, in which case the Insurer shall provide to the **Named Insured** written notice of such termination which shall be effective twenty (20) days after receipt by
TALLGRASS INDUSTRIES
- 3. cancellation by the **Named Insured** by providing notice to the Insurer stating when such cancellation shall be effective.

Any return of premium shall be computed on a pro rata basis.



X. REPRESENTATIONS AND SEVERABILITY OF THE APPLICATION

The **Insureds** represent and acknowledge that the statements, representations, and information in the **Application** are true and accurate. This Policy is issued in reliance upon the truth and accuracy of such statements, representations, and information.

The **Application** is deemed a separate request for coverage by each **Insured**. As such, with respect to any statements, representations, and information in the **Application**, no knowledge possessed by any **Insured Person** shall be imputed to any other **Insured Person**.

In the event the statements, representations, or information in the **Application** contain any actual or knowing misrepresentation or omission which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under this Policy, there shall be no coverage for any **Loss** on account of any **Claim** alleging, arising out of, or based upon any such misrepresentations or omissions:

1. with respect to any **Insured Person** who knew of such misrepresentations or omissions. For purposes of this paragraph, the knowledge of any **Insured Person** shall not be imputed to any other **Insured Person**;
2. with respect to the **Insured Entity**, to the extent it indemnifies any **Insured Person** identified in paragraph 1. above as having knowledge of the such misrepresentations or omissions, and
3. with respect to the **Named Insured**, if any **Responsible Person** knew of such misrepresentations or omissions.

The Insurer shall not be entitled to rescind or void this Policy with respect to any **Insured**.

XI. CHANGE OF CONTROL OR STATUS OF INSURED

1. SUBSIDIARIES

(a) Acquisition or Creation of a Subsidiary

- i. Subject to paragraph ii. below, if before or during the **Policy Period** an **Insured Entity** acquires or creates **Management Control** of another entity, such that the acquired or newly created entity becomes a **Subsidiary**, then such **Subsidiary** and the **Insured Persons** thereof, shall be **Insureds** only with respect to **Wrongful Acts** occurring after such acquisition or creation.
- ii. If a **Subsidiary** is acquired or created during the **Policy Period** pursuant to paragraph i. above and the total assets of such **Subsidiary** exceed twenty-five percent (25%) of the total assets of the **Named Insured** (as reflected in the most recent audited consolidated financial statements of such **Subsidiary** and the **Named Insured**, respectively, as of the date of such acquisition or creation), then the **Named Insured**, no later than sixty (60) days after the date of such acquisition or creation, shall provide written notice of such acquisition or creation to the Insurer together with all information the Insurer may reasonably require. Coverage for any such acquired or created **Subsidiary** and its **Insured Persons** may be subject to additional or different terms and conditions and

HARBOR POINT INDUSTRIES

If the **Named Insured** fails to give such notice and information in accordance with the foregoing, or refuses to accept additional or different terms and conditions or payment of additional premium, coverage for such acquired or created **Subsidiary** and its **Insured Persons** shall terminate with respect to **Claims** first made more than sixty (60) days after such acquisition or creation. Such coverage shall not be eligible for any **Extended Reporting Period** purchase.

- iii. There shall be no coverage under this Policy for any **Wrongful Act** or **Interrelated Wrongful Act** by any **Subsidiary** or by any persons or entities considered to be **Insureds** in i. or ii above, where such **Wrongful Act** or **Interrelated Wrongful Act** occurred in whole or in part before the effective date of the acquisition or creation of the **Subsidiary** by the **Insured** Vantage

(b) Cessation of a Subsidiary

If, during the **Policy Period**, an **Insured Entity** ceases to be a **Subsidiary**, then with respect to such **Subsidiary** and its **Insured Persons**, coverage shall continue for **Claims** for **Wrongful Acts** or **Interrelated Wrongful Acts** while such **Insured Entity** was a **Subsidiary** until this Policy is terminated or canceled. The Insurer reserves the right to offer an extension of coverage subject to additional or different terms and conditions and HARBOR POINT INDUSTRIES

2. FUNDS

(a) Omnibus Fund Coverage

Subject to paragraph (b) below, if before or during the **Policy Period**, the **Named Insured** or an **Insured Entity** purchases, sponsors, creates, or acquires control of a new entity or vehicle such that the newly created entity or vehicle becomes a **Fund**, then such **Fund** and the **Insured Persons** thereof, shall be **Insureds** only with respect to **Wrongful Acts** occurring after such purchase, sponsorship, creation, or acquisition.

(b) Fund in Excess of Assets Under Management Threshold

If a **Fund** is established during the **Policy Period** pursuant to paragraph (a) above and the total assets of such **Fund** exceeds twenty-five percent (25%) of the combined assets under management of all the **Insured Entities** (as reflected in the most recent audited consolidated financial statements of such **Fund** and the **Insured Entities**, respectively, as of the date of such purchase, sponsorship, creation, or acquisition) then the **Named Insured**, no later than sixty (60) days after the date of such purchase, sponsorship, creation, or acquisition shall provide written notice of such purchase, sponsorship, creation, or acquisition to the Insurer together with all information the Insurer may reasonably require. Coverage for any such **Fund** and its **Insured Persons** may be subject to additional or different terms and conditions and HARBOR POINT INDUSTRIES

If the **Named Insured** fails to give such notice and information in accordance with the immediate preceding paragraph above, or refuses to accept additional or different terms and conditions or payment of additional premium, coverage for such **Fund** and its **Insured Persons** shall terminate with respect to **Claims** first made more than sixty (60) days after such purchase, sponsorship, creation, or acquisition. Such termination of coverage shall not be eligible for any **Extended Reporting Period** purchase.

There shall be no coverage under this Policy for any **Wrongful Act** or **Interrelated Wrongful Act** by any **Fund** or by any persons or entities considered to be **Insureds** in (a) or (b) above, where such **Wrongful Act** or **Interrelated Wrongful Act** occurred in whole or in part before the effective date of the purchase, sponsorship, creation, or acquisition of the **Fund** by the **Named Insured** or **Insured** Vantage

(c) Cessation of a Fund

If, during the **Policy Period**, a **Fund** ceases to exist, then with respect to such **Fund** and its **Insured Persons**, coverage shall continue for **Claims** for **Wrongful Acts** while such **Fund** was an **Insured Entity** and in existence until this Policy is terminated or canceled. The Insurer reserves the right to offer an extension of coverage subject to additional or different terms and conditions and HARBOR POINT INDUSTRIES

3. TAKEOVER

In the event of a **Takeover**, during the **Policy Period**, coverage under this Policy shall continue until this Policy is otherwise terminated or canceled, but only with respect to **Claims** for **Wrongful Acts** occurring before the effective date of the **Takeover**, unless:



- (a) the Insurer is notified in writing of the **Takeover** prior to the **Takeover** effective date;
 - (b) the Insurer agrees in writing to provide coverage for **Wrongful Acts** occurring on or after such effective date, subject to additional or different terms and conditions and payment of additional premium; and
 - (c) the **Named Insured** accepts any additional or different terms and conditions and payment of
- IRONVALE SERVICE GROUP

This Policy may not be canceled after the effective date of the **Takeover** and the entire premium for this Policy shall be deemed earned as of such effective date.

XII. OTHER INSURANCE

1. In the event **Loss** covered under this Policy is also covered under any other valid and collectible insurance policy, then this Policy shall apply as excess of the applicable retention and limit of liability of such other policy, unless such other insurance is written specifically as excess insurance of the Limits of Liability provided by this Policy. Notwithstanding the foregoing, this Policy shall apply as primary with respect to any personal umbrella or personal directorship liability insurance purchased by an **Insured Person**.
2. Any coverage afforded by this Policy shall apply specifically as excess of, and shall not contribute with, any fiduciary, environmental, cyber or employment practices liability policy.
3. Any coverage afforded by this Policy for a **Claim** against an **Executive** serving in his/her capacity as such for an **Outside Entity** shall apply specifically as excess of any insurance and/or indemnification available to such **Executive** from such **Outside Entity**. Provided however, any payment by the Insurer, or any affiliate of the Insurer, under another policy as a result of such **Claim** against an **Executive** while acting as such for an **Outside Entity** shall reduce, by the amount of such payment, the Insurer's Limit of Liability under this Policy with respect to such **Claim**.

XIII. ESTATES, LEGAL REPRESENTATIVES AND SPOUSES

The estates, heirs, legal representatives, assigns, spouses, and any **Domestic Partner** of **Insured Persons** shall be considered **Insureds** under this Policy; provided, coverage is afforded to such estates, heirs, legal representatives, assigns, spouses, and Cedarline Service only for a **Claim** arising solely out of their status as such and, in the case of a spouse or **Domestic Partner**, where such **Claim** seeks damages from marital community property, jointly held property, or property transferred from an **Insured Person** to such **Insured Person's** spouse, or **Domestic Partner**. No coverage is provided for any act, error, or omission of an estate, heir, legal representative, assign, spouse or **Domestic Partner** of an **Insured Person**. All terms and conditions of this Policy, including without limitation the Retention, applicable to **Loss** incurred by an **Insured Person**, shall also apply to **Loss** incurred by such estates, heirs, legal representatives, assigns, spouses, and Winslow Builders

XIV. BANKRUPTCY

Bankruptcy or insolvency of any **Insured Entity** or any **Insured Person** shall not relieve the Insurer of any of its

IRONVALE CONTRACTING

The **Named Insured**, any **Insured Entity** and all **Insured Persons** agree not to oppose or object to any efforts by the Insurer or any **Insured** to obtain relief from any stay or injunction applicable to the proceeds of this Policy as a result of the commencement of any bankruptcy or insolvency proceeding.

XV. PRIORITY OF PAYMENTS

Any coverage afforded by this Policy is principally intended to benefit the **Insured Persons**. In the event that **Non-Indemnifiable Loss** and any other **Loss** are concurrently due, then the **Non-Indemnifiable Loss** shall be paid first. All other **Loss** shall be paid as it becomes due in accordance with the terms and conditions of this Policy.



XVI. NO ACTION AGAINST INSURER

1. No action shall be taken against the Insurer unless, as a condition precedent, there shall have been full compliance with all the provisions of this Policy.
2. No person or entity shall have any right under this Policy to join the Insurer as a party to any **Claim** against an **Insured** to determine such **Insured's** liability, nor shall the Insurer be impleaded by an **Insured** or their
ASHCROFT MECHANICAL

XVII. CHANGES OR ASSIGNMENT

Notice to, or knowledge possessed by, any agent or other person acting on behalf of the Insurer shall not effect a waiver or a change in any part of this Policy or prevent the Insurer from asserting any right under the provisions of this Policy. The provisions of this Policy cannot be waived or changed except by written endorsement issued to form a part of this Policy.

Further, any assignment of interest under this Policy shall not bind the Insurer unless the Insurer's consent to such assignment is endorsed to this Policy.

XVIII. TERRITORY

Coverage shall apply worldwide.

XIX. NAMED INSURED TERESA BARRINGTON

The **Insureds** agree that the **Named Insured** will act on behalf of all **Insureds** with respect to giving of all notice to the Insurer (except notices provided under Section VII, Notices and Interrelated Claims), the receipt of notices from the Insurer, the payment of the premiums, the receipt of any return premiums that may become due under this Policy, and the agreement to and acceptance of endorsements.

Any notices to the **Named Insured** under this Policy shall be provided to the **Named Insured** at the address provided in Item 1. of the Declarations. If properly mailed to the **Named Insured** at such address, the date of mailing shall constitute the date such notice was given.

XX. ENTIRE AGREEMENT

The **Insureds** agree that this Policy, including the **Application**, constitute the entire contract existing between them and the Insurer or any of its agents relating to this insurance.

XXI. VALUATIONS

All premiums, limits, retentions, **Loss**, and other amounts under this Policy are expressed and payable in United States of America currency. If any judgment, settlement, or any part of **Loss** is expressed or calculated in any other currency, payment of such **Loss** due under this Policy will be made in the currency of the United States of America, at the rate of exchange published in The Wall Street Journal on the date the Insurer's obligation to pay such **Loss** is established, or, if not published on that date, on the date of next publication.

XXII. TRADE AND ECONOMIC SANCTIONS

This Policy does not provide coverage for an **Insured**, transaction, or that part of loss that is uninsurable under the laws or regulations of the United States concerning trade or economic sanctions.



IN WITNESS WHEREOF, the Insurer has caused this Policy to be executed by its Chairman and Secretary, but this Policy shall not be binding upon us unless completed by the attachment of the Declarations.

Chairman

A handwritten signature in blue ink, appearing to read "D. W.", is written below the Chairman title.

Secretary

A handwritten signature in blue ink, appearing to read "S. B.", is written below the Secretary title.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

INVESTMENT ADVISER MANAGEMENT LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

1. **Management Liability (Individual)**

The Insurer shall pay **Non-Indemnifiable Loss** on behalf of an **Insured Person** resulting from any **Claim** first made against such **Insured Person** during the **Policy** ^{Vantage}

2. **Management Liability (Reimbursement)**

The Insurer shall pay **Loss** on behalf of an **Insured Entity**, for which an **Insured Entity** has indemnified an **Insured Person**, resulting from any **Claim** first made against such **Insured Person** during the **Policy** ^{Vantage}

3. **Insured** ^{Janet Northcott}

The Insurer shall pay **Loss** on behalf of an **Insured Entity** resulting from a **Securities Claim** first made against such **Insured** ^{ASHCROFT LOGISTICS}

4. **Shareholder Derivative Demand Investigation Costs**

The Insurer shall pay **Shareholder Derivative Demand Investigation Costs** on behalf of an **Insured Entity** resulting from any **Shareholder Derivative Demand** first made during the **Policy** ^{Vantage}

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in the Section II, Definitions found in the General Terms and Conditions:

Independent Director means any past, present, or future duly elected or appointed director of an **Insured Entity** who has never been an officer or **Employee** of any **Insured Entity**.

Insured ^{RIDGEWAY INDUSTRIES}

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Facilitation Costs**, **Extradition Costs**, **Non-Party Witness Fees**, and **Defense Costs**.

Loss shall also include:

1. punitive, exemplary, and multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**, provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages;
2. solely with respect to an **Insured Person**, penalties assessed against such **Insured Person** pursuant to the Foreign Corrupt Practices Act, 15 U.S.C. Sec. 78dd-2(g)(2)(B); and
3. solely with respect to Insuring Agreement 4, **Shareholder Derivative Demand Investigation Costs**.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**, with the exception of penalties in paragraph 2 above;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy is construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;



- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) **Clean-Up Costs**;
- (g) the return of any fees, charges, or expenses; or
- (h) awards, settlements or judgments in connection with an **Inadequate Consideration Claim**.

Provided however, that the Insurer shall not assert that the portion of any damage, judgment, or settlement or **Defense Costs** that relate to any alleged violations of Section 11, 12, or 15 of the Securities Act of 1933 (as amended), is uninsurable and shall treat that portion of such damage, judgment, or settlement or **Defense Costs** as constituting **Loss** under this Policy, subject to all terms, conditions and exclusions of this Policy.

Professional Services means:

1. providing financial or economic advice regarding investments;
2. the trading of futures contracts and the trading of fixed income securities;
3. performing or meeting the responsibilities, obligations, or duties imposed upon fiduciaries by Sections 3(21) and 3(38) of the Employee Retirement Income Security Act of 1974, as amended;
4. investment and portfolio management, and asset allocation services;
5. the selection and oversight of investment advisers or third party service providers; or
6. the publication of written material in connection with any of the activities and services set forth in paragraphs 1. through 5. above,

provided the above are rendered by an **Insured** for, or on behalf of a **Professional Services Client** or **Fund**.

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted or allegedly committed or attempted, by:

1. an **Executive** or **Additional Insured** in: (a) his/her capacity as such; or (b) any matter claimed against such **Executive** or **Additional Insured** solely by reason of his/her status as such;
2. an **Employee** in his/her capacity as such, but solely with respect to any **Securities Claim**; or
3. solely with respect to Insuring Agreement 3, an **Insured Entity**.

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, disease, violation of any right of privacy, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property including loss of use, provided that this exclusion shall not apply to any **Securities Claim** or **Non-Indemnifiable Loss**.

- **Professional Services**

for the rendering of, or the failure to render, any **Professional Services**.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

INVESTMENT ADVISER PROFESSIONAL LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

Investment Adviser Professional Liability

The Insurer shall pay **Loss** on behalf of an **Insured** resulting from any **Claim** first made against such **Insured** during the **Policy Period**.

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in Section II, Definitions found in the General Terms and Conditions:

Independent Director means any past, present, or future duly elected or appointed director of an **Insured Entity** who has never been an officer or **Employee** of any **Insured Entity**.

Insured FAIRMOUNT FABRICATION

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Non-Party Witness Fees** and **Defense Costs**.

Loss shall also include punitive, exemplary, or multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**, provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy shall be construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;
- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) the return of any fees, expenses, or charges; or
- (g) **Clean-Up Costs**.

Professional Services means:

- 1. providing financial or economic advice regarding investments;
- 2. the trading of futures contracts and the trading of fixed income securities;
- 3. performing or meeting the responsibilities, obligations, or duties imposed upon fiduciaries by Sections 3(21) and 3(38) of the Employee Retirement Income Security Act of 1974, as amended;
- 4. investment and portfolio management, and asset allocation services;
- 5. the selection and oversight of investment advisers or third party service providers; or
- 6. the publication of written material in connection with any of the activities and services set forth in paragraphs 1. through 5. above,

provided the above are rendered by an **Insured** for, or on behalf of, a **Professional Services Client** or **Fund**.

Professional Services shall not include any **Investment Banking Services** unless neither the **Insured** nor the client is a party or participant in the investment banking transaction.



Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted, or allegedly committed or attempted by an **Insured** (or any entity or natural person for whose acts the **Insured** is contractually or legally liable) while acting in such capacity, in the rendering of, or failing to render **Professional Services**.

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable to pay for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, violation of any right of privacy, disease, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property, including loss of use thereof.

- **Securities Broker or Dealer**

for liability involving the activities of any **Insured** as a "broker" or "dealer" in securities, as defined in Sections 3(a)(4) and 3(a)(5), respectively, of the Securities Exchange Act of 1934; provided, that this exclusion shall not apply to the distribution, underwriting, or resale of securities purchased by an **Insured** directly from a **Registered Fund** solely for resale to shareholders of that fund.



INVESTMENT MANAGEMENT LIABILITY SOLUTIONS

FUND MANAGEMENT AND PROFESSIONAL LIABILITY COVERAGE PART

I. INSURING AGREEMENTS

1. Fund Management and Professional Liability

The Insurer shall pay **Loss** on behalf of the **Fund Insureds** resulting from any **Claim** first made against any **Fund Insured** CLEARWATER FABRICATION

2. Shareholder Derivative Demand Investigation Costs

The Insurer shall pay **Shareholder Derivative Demand Investigation Costs** on behalf of an **Insured Entity** resulting from any **Shareholder Derivative Demand** first made CLEARWATER FABRICATION

II. SPECIAL DEFINITIONS

These definitions are in addition to the definitions set forth in Section II, Definitions found in the General Terms and Conditions:

Fund Insureds means any **Fund** and its **Insured Persons**.

Independent Director means:

1. with respect to a **Private Fund** any past, present, or future duly elected or appointed director who has not and has never been an officer or **Employee** of the **Private Fund**; or
2. with respect to a **Registered Fund**, any director of a **Registered Fund** who is not an "Interested Person" of such **Registered Fund** as defined in Section 2(a)(19) of the Cedarline Service Act of 1940.

Insured IRONVALE ENTERPRISES

Loss means those amounts that an **Insured** is legally obligated to pay as a result of any **Claim**, including awards, settlements, judgments, pre-judgment and post-judgment interest, plaintiffs' attorney fees, and costs agreed to in settlement of, or imposed as a result of a judgment. **Loss** shall include **Facilitation Costs**, **Extradition Costs**, **Non-Party Witness Fees**, and **Defense Costs**.

Loss shall also include:

1. punitive, exemplary, and multiplied damages if such punitive or exemplary damages are insurable in the jurisdiction which is most favorable to the **Insured**; provided that such jurisdiction has a substantial relationship to the relevant **Insureds**, to the Insurer, or to the **Claim** giving rise to such damages;
2. solely with respect to an **Insured Person**, penalties assessed pursuant to the Foreign Corrupt Practices Act, 15 U.S.C. Sec. 78dd-2(g)(2)(B); and
3. solely with respect to Insuring Agreement 2, **Shareholder Derivative Demand Investigation Costs**.

However, **Loss**, other than **Defense Costs**, shall not include:

- (a) any amount attributable to the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature;
- (b) fines, penalties, or taxes assessed or imposed against an **Insured**, with the exception of penalties in paragraph 2 above;
- (c) matters which are deemed uninsurable under the law pursuant to which this Policy is construed;
- (d) any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement, or court order;
- (e) payment of any dividends or other similar profit distributions of the **Insured Entity** to any shareholder, stakeholder, or equity holder of the **Insured Entity**;
- (f) **Clean-Up Costs**;



- (g) the return of any fees, expenses, or charges;
- (h) awards, settlements or judgments in connection with an **Inadequate Consideration Claim**; or
- (i) the amount that represents the return of any contribution of capital to any **Insured Person** or **Employee** or any **Fund**.

Provided however, that the Insurer shall not assert that the portion of any damage, judgment, or settlement or **Defense Costs** that relate to any alleged violations of Section 11, 12, or 15 of the Securities Act of 1933 (as amended), is uninsurable and shall treat that portion of such damage, judgment, or settlement or **Defense Costs** as constituting **Loss** under this Policy, subject to all terms, conditions and exclusions of this Policy.

Professional Services means:

1. the capitalization, formation, operation, management, administration, and marketing of a **Fund**;
2. providing financial or economic advice regarding investments by an **Insured** for, or on behalf of, a **Fund**;
3. portfolio and asset management services performed by an **Insured** for, or on behalf of, a **Fund**, or
4. the selection and oversight of outside service providers and unaffiliated investment advisers by an **Insured** for, or on behalf of, a **Fund**.

Professional Services shall not include any **Investment Banking Services**, other than **Investment Banking Services** with respect to shares issued by a **Fund**, or the restructuring of a **Fund** or the voting of shares held in portfolios of a **Fund**.

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed, attempted, or allegedly committed or attempted, by:

1. any **Insured Person** of a **Fund** in: (a) his/her capacity as such; or (b) any matter claimed against such **Insured** ASHCROFT MOTORWORKS
2. a **Fund** in its capacity as such, except while acting in such capacity rendering, or failing to render, professional services; or
3. any **Fund Insured** while acting in such capacity, in the rendering of, or failing to render, **Professional** Winslow

III. SPECIAL EXCLUSIONS

The following exclusions are in addition to the exclusions set forth in Section III, General Policy Exclusions found in the General Terms and Conditions:

The Insurer shall not be liable for **Loss** under this Policy in connection with any **Claim**:

- **Bodily Injury/Property Damage**

for any actual or alleged bodily injury (including death), sickness, violation of any right of privacy, disease, emotional distress, mental anguish, libel, slander or defamation of any person, or damage to or destruction of any tangible property, including loss of use, provided that this exclusion shall not apply to:

1. emotional distress, mental anguish, or any actual or alleged libel, slander, oral or written publication of defamatory or disparaging material solely arising out of the rendering of, or failing to render **Professional Services**;
2. **Securities Claim**, or
3. **Non-Indemnifiable Loss**.

- **Securities Broker or Dealer**

for liability involving the activities of any **Fund Insured** as a "broker" or "dealer" in securities, as defined in Sections 3(a)(4) and 3(a)(5), respectively, of the Securities Exchange Act of 1934, provided, that this exclusion shall not apply to the distribution, underwriting, or resale of securities purchased directly from a **Registered Fund** by a distributor for resale to any broker or dealer.



- **Unregistered Securities**

asserting liability under any federal or state securities laws arising from the selling of the securities of any **Registered Fund** in a particular jurisdiction without registering or in excess of the number registered for sale in such jurisdiction; provided, that this exclusion shall not be applicable to the difference between the net asset value at which the securities of any such **Registered Fund** were sold and the net asset value of such securities at the time of their repurchase.



COST OF CORRECTIONS ENDORSEMENT

In consideration of the premium paid for this Policy, it is agreed that the Policy is amended as follows:

- I. The following new Insuring Agreement is added to the Investment Adviser Professional Liability Coverage Part and Fund Management and Professional Liability Coverage Part, Section I, Insuring Agreements:

- **Cost of Correction Coverage**

The Insurer shall reimburse the **Insured** for **Cost of Correction** the **Insured** incurs as a result of an **Event** provided that:

- (i) the **Event** occurred was first discovered during the **Policy Period**; and
- (ii) in the absence of any correction, the **Event** would have resulted in a covered **Claim** against the **Insureds** under this Policy.

- II. Section II, Special Definitions is amended as follows:

- A. The following definitions are added to Investment Adviser Professional Liability Coverage Part and Fund Management and Professional Liability Coverage Part:

Cost of Correction shall mean reasonable and necessary fees, costs, expenses, or damages incurred by an **Insured** BLUE FORK LOGISTICS

Event shall mean an operational event of an **Insured** resulting from a **Wrongful Act** by an **Insured** in the rendering or failure to render **Professional Services**.

- B. The definition of **Loss** is amended to include **Cost of Correction**.

- III. Solely with respect to the coverage afforded by this endorsement, the General Terms and Conditions, Section VII, Notice and Interrelated Claim is amended by adding the following new provision:

Cost of Corrections Notice

- As a condition precedent to any Cost of Correction Coverage, the **Insureds** must submit a written notice requesting the Insurer to reimburse **Cost of Correction** within sixty (60) days of when a **Responsible Person** first becomes aware of such an **Event**. Such notice shall be delivered to the Insurer at the address set forth in Item 4. of the Declarations.

Such notice shall include:

- a. a description of the actual, alleged, or potential **Wrongful Act** which forms the basis of the demand to pay the **Cost of Correction**;
- b. the consequences which have resulted and/or may result from such actual, alleged, or potential **Wrongful Act**;
- c. a detailed proof of loss indicating all fees, costs, expenses, and damages incurred that the **Insured** is seeking reimbursement; and
- d. any other information that the Insurer may reasonably request.

- IV. Section IV, Limit of Liability/Retention/ Indemnification/Advancement of Defense Costs of the General Terms and Conditions is amended by the addition of the following:

- There is no additional Limit of Liability provided for the coverage provided by the **Cost of Correction Coverage** Insuring Agreement. Such Limit of Liability is part of the Policy's maximum aggregate Limit of Liability for all **Loss** set forth in Item 6.a. of the Declarations. As such, any payments made under the coverage provided by the **Cost of Corrections Liability** Insuring Agreement shall further reduce the Limit of Liability provided by the Policy.



- The Retention for any **Cost of Correction** payment shall be the same Retention applicable to any **Claim** under this Coverage Part.

V. Any extended reporting period shall not apply to the coverage afforded by this endorsement.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



MOCK REGULATORY COMPLIANCE EXAMINATION CONTRIBUTION ENDORSEMENT
(Approved Compliance Consulting Firms)

In consideration of the premium, the General Terms and Conditions of the Policy is amended to include the following new section:

MOCK REGULATORY COMPLIANCE EXAMINATION CONTRIBUTION

1. Subject to paragraph 2. below, the Insurer will reimburse the **Named Insured** for the cost of mock regulatory compliance examinations of the **Named Insured** conducted during the **Policy Period**, by any of the following Approved Compliance Consulting Firms ("Approved Compliance Consulting Firm"):
 - (a) ACA Cedarline ;
 - (b) NRS National Regulatory Services;
 - (c) Duff & Phelps;
 - (d) Vigilant Compliance;
 - (e) Constellation Advisors;
 - (f) SEC Compliance Consultants ("SEC3");
 - (g) Granite Row ; and
 - (h) HighCamp Compliance

Any mock regulatory compliance examination performed by an Approved Compliance Consulting Firm does not require prior written consent of the Insurer. Any mock regulatory compliance examination performed by a compliance consulting firm who is not an Approved Compliance Consulting Firm requires prior written consent of the Insurer.

2. The Insurer's maximum reimbursement payment for each mock regulatory compliance examination shall be fifty percent (50%) of the cost of such examination or ten percent (10%) of the annual premium charged for this Policy, whichever is less. The Insurer's maximum reimbursement payment total for all mock regulatory compliance examinations in the aggregate shall be \$25,000.
3. The provisions of this section shall apply to one (1) mock regulatory compliance examination per twelve (12) month period.
4. This section shall not apply to any extended reporting period of the **Policy Period**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



In consideration of the premium, it is agreed that solely with respect to an **Insured Entity** that is a RIDGEWAY WORKS the Policy is amended as follows:

- I. Insuring Agreement 3, Insured Entity Securities Liability of the Investment Adviser Management Liability Coverage Part, is deleted and replaced with the following:

3. **Insured** Ivan Northcott

The Insurer shall pay **Loss** on behalf of an **Insured Entity** resulting from a **Claim** first made against such **Insured** ASHCROFT LOGISTICS

- II. Section II, Special Definitions of the Investment Adviser Management Liability Coverage Part, is amended by deleting and replacing the definition of **Wrongful Act** with the following:

Wrongful Act means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, or breach of duty committed or attempted, or allegedly committed or attempted by:

1. an **Insured Person** in (a) his/her capacity as such; or (b) any matter claimed against such **Insured Person** FAIRMOUNT WORKS
2. an **Insured** Vantage

- III. Section III, Special Exclusions of the Investment Adviser Management Liability Coverage Part, is amended by adding the following Exclusions:

- **Publishing Liability**

for any actual or alleged plagiarism, misappropriation, infringement, or violation of copyright, patent, trademark, trade secret, or any other intellectual property rights, except that this exclusion shall not apply to any **Insured** Vantage

- **Securities**

based upon or arising out of, or in any way involving:

1. the public offer, sale, offer to sell, solicitation, or distribution of securities issued by an **Insured Entity** or any **Subsidiary**; or
2. the actual or alleged violation of any federal, state, local, statutory, regulatory or common law relating to securities or any rules or regulations promulgated thereunder, if such violation actually or allegedly occurred after a transaction described in paragraph 1 above.

Provided, however, if within thirty (30) days prior to the effective date of any public offering of securities (whether or not exempted by section 3(b) of the Securities Act of 1933) the **Named Insured** provides written notice of such public offering to the Insurer together with all information the Insurer may reasonably require, then the Insurer may in its sole discretion, agree in writing to provide coverage for such public offerings, subject to additional terms and conditions and payment of additional premium.

- IV. Section III, Exclusions of the General Terms and Conditions is amended by adding the following Exclusion:

- **Unfair Competition**

based upon or arising out of any actual or alleged:

- (a) unfair competition, dilution, deceptive trade practices, or civil actions for consumer fraud;
- (b) charges of price fixing, monopolization, or restraint of trade;



- (c) tortious interference with contract or intentional interference with contractual relations; or
- (d) false or deceptive advertising or misrepresentation in advertising.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



PRE-CLAIM EXPENSES ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

- I. Notwithstanding anything to the contrary in this Policy, **Defense Costs** will also include "Pre-Claim Expenses", provided that any payment of Pre-Claim Expenses is conditioned upon the following:
 1. the **Insured** provides written notice of circumstances pursuant to paragraph 2, Notice of Circumstance, Section VII, Notice and Interrelated Claims, which the Insurer has accepted (the "Noticed Matter");
 2. the **Insured** provides written notice of a **Claim**, which arises subsequent to the Noticed Matter, and arises from, is based upon, or directly results from the same or similar facts, transactions, or events described in the Noticed Matter ("Subsequent Claim");
 3. the Insurer has accepted such notice of the Subsequent Claim;
 4. the **Insured** is in compliance with all other terms and conditions of the Policy; and
 5. any Pre-Claim Expenses shall first be applied towards the applicable Retention for the Subsequent Claim.
- II. For purposes of coverage afforded by this Endorsement the following terms and conditions shall apply:

"Pre-Claim Expenses" shall mean reasonable and necessary fees, costs, and expenses (other than salaries, wages, fees, overhead, or benefit expenses of any **Insured Person**) that have been: (i) consented to by the Insurer, such consent not to be unreasonably withheld; and (ii) incurred by an **Insured** in the defense of the Noticed Matter, on or after the date the notice of circumstances has been accepted and prior to, or on, the date the Noticed Matter became a **Claim**.

Pre-Claim Expenses shall not include any fees, costs, or expenses incurred by the **Insured**: (i) in connection with any routine examinations, routine inspections, "sweep" examinations, general requests for information, or any other similar reviews, inquiries, or investigations; or (ii) as a result of any Foreign Corrupt Practices Act investigation, examination, or request.
- III. The Insurer has the sole discretion with respect to determining the reasonableness, necessity, and allocation of the Pre-Claim Expenses (including the right to apply any Subsequent Claim exclusions to the determination and allocation of Pre-Claim Expenses).

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



SCHEDULE OF PRIVATE FUNDS ENDORSEMENT

In consideration of the premium, it is understood and agreed that the Scheduled Private Funds below are incorporated by reference into paragraph 1(a) of the **Private Fund** definition set forth in Section II, Definitions of the General Terms and Conditions:

Schedule of Private Funds:

PB Partners FTW, L.P.
PB Partners, L.P.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM ENDORSEMENT

It is understood and agreed as follows:

Whenever used in this endorsement, 1) "we" means the insurer listed on Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable.

A. Cap on Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security and the Attorney General of the United States, to be an act of terrorism pursuant to the Terrorism Risk Insurance Act, as extended and reauthorized (the "Act"). The criteria contained in the Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

B. Application of Exclusions

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any loss which would otherwise be excluded under this Policy, such as losses excluded by the Nuclear Hazard Exclusion or the War And Military Action Exclusion.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



IMPORTANT INFORMATION

NOTICE - OFFER OF TERRORISM COVERAGE;

DISCLOSURE OF PREMIUM

THIS NOTICE DOES NOT FORM A PART OF THE POLICY, GRANT ANY COVERAGE OR CHANGE THE TERMS AND CONDITIONS OF ANY COVERAGE UNDER THE POLICY.

As used herein, 1) "we" means the insurer listed on the Declarations or the Certificate of Insurance, as applicable; and 2) "you" means the first person or entity named on the Declarations or the Certificate of Insurance, as applicable. You are hereby notified that under the Terrorism Risk Insurance Act, as extended and reauthorized ("Act"), you have a right to purchase insurance coverage of losses arising out of acts of terrorism, as defined in Section 102(1) of the Act, subject to all applicable policy provisions. The Terrorism Risk Insurance Act established a federal program within the Department of the Treasury, under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks.

This Notice is designed to alert you to coverage restrictions and to certain terrorism provisions in the policy. If there is any conflict between this Notice and the policy (including its endorsements), the provisions of the policy (including its endorsements) apply.

CHANGE IN THE DEFINITION OF A CERTIFIED ACT OF TERRORISM

The Act applies when the Secretary of the Treasury certifies that an event meets the definition of an act of terrorism. Originally, the Act provided that to be certified, an act of terrorism must cause losses of at least five million dollars and must have been committed by an individual or individuals acting on behalf of any foreign person or foreign interest to coerce the government or population of the United States. However, the 2007 re-authorization of the Act removed the requirement that the act of terrorism must be committed by or on behalf of a foreign interest, and now certified acts of terrorism may encompass, for example, a terrorist act committed against the United States government by a United States citizen, when the act is determined by the federal government to be "a certified act of terrorism."

In accordance with the Act, we are required to offer you the ability to purchase coverage for losses resulting from an act of terrorism that is certified under the federal program. The other provisions of this policy, including nuclear, war or military action exclusions, will still apply to such an act.

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The Department of the Treasury will pay a share of terrorism losses insured under the federal program. Beginning in 2020, the federal share equals 80% of that portion of the amount of such insured losses that exceeds the applicable insurer retention.

TALLGRASS MECHANICAL

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year (January 1 through December 31), the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

Further, this coverage is subject to a limit on our liability pursuant to the federal law where, if aggregate insured losses attributable to terrorist acts certified under the Act exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion. In such case, insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.



Policy Holder Notice – Country Wide

CONFIRMATION OF ACCEPTANCE OF COVERAGE

In accordance with the Act, we offered you coverage for losses resulting from an act of terrorism that is certified under the federal program. This notice confirms that you have chosen to accept our offer of coverage for certified acts of terrorism. The policy's other provisions, including nuclear, war or military action exclusions, will still apply to such an act. The premium charge for terrorism coverage, if any, is shown separately on the Declarations or the Certificate of Insurance, as applicable.



SERVICE OF SUIT ENDORSEMENT

Wherever used in this endorsement Named Insured means the first person or entity named on the declarations page.

In consideration of the premium paid for this Policy, it is agreed that the following provision is added to the Policy:

SERVICE OF SUIT

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, the Insurer hereby designates the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the Named Insured or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the below-named as the person to whom the said officer is authorized to mail such process or true copy thereof.

Service of process in such suit shall be made upon:

General Counsel
Ridgeway Enterprises
151 North Franklin Street
Monroe, IL 10950

and in any suit instituted against such person upon this policy, the Insurer will abide by the final decision of such court or of any appellate court in the event of an appeal.

The General Counsel is authorized and directed to accept service of process on behalf of the Insurer in any such suit and, upon the request of the Named Insured, to give a written undertaking to the Named Insured that he will enter a general appearance upon the Insurer's behalf in the event such suit shall be instituted.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



CONDITIONAL RENEWAL ENDORSEMENT-CALIFORNIA

Wherever used in this endorsement: 1) Insurer means "we", "us", "our" or the "Company" as those terms are defined in the policy; and 2) Named Insured means the first person or entity named on the declarations page; and 3) "Insured(s)" means all persons or entities afforded coverage under the policy.

Any cancellation, non-renewal or termination provision(s) in the policy are amended to add the following:

CONDITIONAL RENEWAL

- I. The Insurer, at least 60 days, but not more than 120 days, in advance of the end of the policy period, shall give notice if the Insurer intends to condition renewal upon reduction of limits, elimination of coverages, increase in deductibles, or increase of more than 25 percent in the rate upon which the premium is based.
- II. If an Insurer fails to give timely notice required above, the policy shall be continued, with no change in terms or conditions, for a period of 60 days after the Insurer gives the notice.
- III. A written notice will be mailed or delivered to the Named Insured, at the last mailing address known to the Insurer, and the producer of record at least thirty (30) days prior to the effective date of any increase, reduction or change.
- IV. The notice will state the effective date of, and the reasons for, the increase, reduction or change.
- V. If notice is mailed, proof of mailing will be sufficient proof of notice.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND EXTENDED REPORTING PERIOD ITEM 5 OF THE DECLARATIONS

In consideration of the premium, it is understood and agreed that the Policy is amended as follows:

Item 5 of the Declarations, Extended Reporting Period, is deleted and replaced with the following:

Extended Reporting Period:

Option 1:

- a. Period: 1 year
- b. Premium: 150% of Policy Premium

Option 2:

- a. Period: 3 years
- b. Premium: 200% of Policy Premium

Option 3:

- a. Period: 6 years
- b. Premium: 250% of Policy Premium

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



VITAL EXECUTIVE EXPENSES ENDORSEMENT

In consideration of the premium, and solely with respect to Investment Adviser Professional Liability and Fund Management and Professional Liability Coverage Part(s), the Policy is amended as follows:

- I. The following Insuring Agreement is added to Section I, Insuring Agreements:

Vital Executive Expenses

The Insurer will pay **Vital Executive Expenses**, subject to the sublimit of liability below, on behalf of the **Named Insured** resulting from all **Executive Incidents** which first occur during the **Policy Period**.

- II. Section IV, Limit of Liability/Retention/Indemnification/Advancement of Defense Costs of the General Terms and Conditions is amended as follows:

- A. The following Section is added to paragraph 1, Limit of Liability:

Vital Executive Expenses Sublimit

The Sublimit of Liability of \$250,000 is the aggregate limit of the Insurer's liability for all **Vital Executive Expenses** regardless of the number of **Executives**, **Executive Incidents**, or Coverage Parts. This **Vital Executive Expenses** sublimit shall be part of and not in addition to the Aggregate Limit of Liability set forth in Item 6a of the Declarations.

- B. Paragraph 2(d) of Retention is amended to add the following:

iii. **Vital Executive Expenses.**

- III. Section II, Special Definitions is amended as follows:

- A. The following definitions are added:

Executive Incident means the death or the permanent disability of an **Executive** which occurs during the **Policy Period**.

Vital Executive Expenses means reasonable and necessary fees, costs, and expenses of a public relations firm, consultant, crisis management firm, or law firm incurred by the **Named Insured**, with the prior written consent of the Insurer, to mitigate the adverse effects of, or negative publicity about the **Named Insured's** business that is directly caused by an **Executive Incident**. **Vital Executive Expenses** shall not include salaries, wages, fees, overhead, or benefit expenses associated with any **Insured Person**.

- B. **Loss** is amended to include **Vital Executive Expenses**.

- IV. The **Named Insured** shall not incur any **Vital Executive Expenses** without the Insurer's prior written consent, such
CLEARWATER MECHANICAL

- V. Section VII, Notice and Interrelated Claims is amended by adding the following paragraph to Paragraph 3, Request for Specified Costs or Fees:

In the event that the **Named Insured** seeks coverage for **Vital Executive Expenses**, the **Named Insured** must submit a written notice to the Insurer during the **Policy Period** which provides sufficient information as to the nature of the **Executive Incident** and the planned efforts to mitigate the adverse effects of, or negative publicity about the **Named Insured**^{ASHCROFT}

- VI. Item 6 of the Declarations shall be amended to add the following:

Vital Executive Expenses Sublimit of Liability (subject to Aggregate Limit of Liability): \$250,000.



VII. The coverage afforded by this endorsement shall not apply to any extended reporting period of the **Policy Period**.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.



AMEND REPRESENTATIONS AND SEVERABILITY OF THE APPLICATION ENDORSEMENT
(Add Material and Inconsistency Language)

In consideration of the premium, Section X, Representations and Severability of the Application set forth in the General Terms and Conditions is deleted and replaced with the following:

The **Insureds** represent and acknowledge that the statements, representations, and information in the **Application** are true and accurate. This Policy is issued in reliance upon the truth and accuracy of such statements, representations, and information.

The **Application** is deemed a separate request for coverage by each **Insured**. As such, with respect to any statements, representations, and information in the **Application**, no knowledge possessed by any **Insured** shall be imputed to any other **Insured Person**.

In the event the statements, representations, or information in the **Application** contain any actual or knowing material misrepresentation or omission which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under this Policy, and there is a **Claim** made arising out of, based upon, attributable to or as a consequence of such inaccurate or incomplete statements or representations, then there shall be no coverage for any **Loss** on account of that portion of any **Claim** alleging, arising out of, or based upon any such material misrepresentations or omissions:

1. with respect to any **Insured Person** who knew of such material misrepresentations or omissions. For purposes of this paragraph, the knowledge of any **Insured Person** shall not be imputed to any other **Insured** ^{Winslow}
2. with respect to the **Insured Entity**, to the extent it indemnifies any **Insured Person** identified in paragraph 1. above as having knowledge of such material misrepresentations or omissions; and
3. with respect to the **Named Insured**, if any **Responsible Person** knew of such material misrepresentations or omissions.

The Insurer shall not be entitled to rescind or void this Policy, in whole or in part, with respect to any **Insured**.

It is hereby understood and agreed that Section X of this Policy shall supersede and take precedence over any provision in the **Application** that is inconsistent with or contrary to this Section X.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.